

MEMORANDUM FOR FILE

SUBJECT: Sole Source/Brand Name Justification / Limited Source Justification for Use of Other than Full & Open Competition for an Acquisition under the Simplified Acquisition Threshold (SAT)

I. BACKGROUND

1. FAR 13.106-1(b)(1)(i) states for purchases not exceeding the simplified acquisition threshold, Contracting Officers may solicit from one source if the Contracting Officer determines that the circumstances of the contract action deem only one source reasonably available.
2. As required by FAR 13.106-3(b)(3)(i), this memorandum explains the absence of competition for this acquisition, as only one source will be solicited for this requirement (or for a portion of the requirement) and the requirement is not expected to exceed the simplified acquisition threshold.
3. This memorandum is derived from Enclosure 3, Department of Navy Simplified Acquisition Procedures Guide (April 2018) and is only applicable to acquisitions under the SAT.

II. DESCRIPTION OF ITEM OR SERVICE (include manufacture/sole source name and address)

InSpecXL, manufactured by 4D Technologies – an Onto Innovation company, is an optical surface profile measuring device that can be utilized in the field to determine the appropriate maintenance strategies for USMC assets with regards to corrosion. This will allow us to perform laboratory-grade surface measuring in the field – supporting failure analyses and warranty claims. NSWCCD is procuring 1 full system and supporting equipment as shown in the table below.

Description	Item Number	Quantity
4D InSpecXL Surface Gage and BackPack Kit W/ Surface Pro	9001-00177	1
167Wh InSpec Back-up Battery Kit	2008-10014	1
Set of fold mirrors for InSpecXL includes 2x 35mm zero-phase mirrors v-groove focus aid and case	7001-00394	1
ISO-Compliant Certified Height Standard for system verification and certification	7001-00621	1
Spare Replacement End Face Glass and nose piece	6002-02213	1

MANUFACTURER: 4D Technology
ADDRESS: 3280 E. Hemisphere Loop, Suite 146

III. BASIS FOR DETERMINATION FOR USE OF OTHER THAN FULL & OPEN COMPETITION

☐ **A. BRAND NAME:**

Item required must be a brand name product, or feature of a product, particular to one manufacturer.

☐ **1. Restrictive Rights:** The source has established proprietary rights, limited rights in data, patent rights, copyrights, or secret processes in the item or service required.

☐ **2. Exclusive Licensing Agreements:** The item or service is only available from the Original Equipment Manufacturer (OEM).

☐ **3. Other Reasons:**

☒ **B. SOLE SOURCE** (select all that apply)

☒ **1. Restrictive Rights:** The source has established proprietary rights, limited rights in data, patent rights, copyrights, or secret processes in the item or service required.

InspecXL was the best fit out of a study of solutions, performed by NSWCCD, for field-use of optical surface profile measuring devices. Of particular importance is its ability to measure surface profile in scenarios where the work conditions aren't favorable to typical laboratory grade equipment. The means in which the InspecXL measures surface profile through projected structured light means that it can be operated in areas with known debris and its ability to take measurements on reflection allows us to measure parts which would otherwise be inaccessible with a probe.

This system will allow for collection of data without the need to dismantle an operational fleet asset. It will allow us to provide data for accurate real-time maintenance management decisions.

This item has been vetted through the ITPR process and is the only product that meets the criteria that has been preauthorized.

☐ **2. Exclusive Licensing Agreements:** The item or service is only available from the Original Equipment Manufacturer (OEM), or there is only one authorized distributor or technical representative for the OEM.

☐ **3. Other Reasons:**

☐ **C. LIMITED SOURCE (FAR 8.405-6):**

Item required must be a brand name product, or feature of a product, particular to one manufacturer.

☐ **1. Restrictive Rights:** The source has established proprietary rights, limited rights in data, patent rights, copyrights, or secret processes in the item or service required.

☐ **2. Exclusive Licensing Agreements:** The item or service is only available from the Original Equipment Manufacturer (OEM).

☐ **3. Other Reasons:**